

STATE OF NEW YORK

5401--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 13, 2025

Introduced by M. of A. ROSENTHAL, REYES -- read once and referred to the Committee on Housing -- recommitted to the Committee on Housing in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the private housing finance law, in relation to requiring housing owned by limited-profit housing companies to be inspected on an annual basis by a housing management representative

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 32-a of the private housing finance law is amended by adding a new subdivision 15 to read as follows:

15. (a) Assign an employee of the commissioner or supervising agency, as the case may be, as a housing management representative to each company. Such housing management representative shall perform a physical inspection of each building owned or maintained by a housing company pursuant to this article. The physical inspection shall be conducted according to the national standards for the physical inspection of real estate as established by the United States department of housing and urban development. The housing management representative shall notify the housing company, including managing agents, duly constituted tenants' association, or duly constituted cooperators' advisory council, of any deficiencies found as a result of such inspection within five business days of such inspection; provided, however, that if any life-threatening deficiency is found as a result of such inspection then such notification shall be provided to the housing company, including managing agents, duly constituted tenants' association, or duly constituted cooperators' advisory council, immediately. The commissioner or supervising agency shall require that the housing company certify correction of such violation within a reasonable timeframe, as determined by the commissioner or the supervising agency in accordance with the national

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD08351-03-6

1 standards for the physical inspection of real estate as established by
2 the United States department of housing and urban development. The
3 commissioner or supervising agency shall post the results of such
4 inspections and any ensuing certification of correction of violation on
5 the commissioner or supervising agency's website.

6 (b) Such housing management representative shall be responsible for
7 monitoring and evaluating the housing company's managements as outlined
8 in Title 9 of the New York Codes, Rules & Regulations. Such housing
9 management representative shall conduct an annual on-site inspection of
10 the development and provide the results of the inspection, including
11 recommendations, in a written report to the housing company, including
12 managing agents, duly constituted tenants' association, or duly consti-
13 tuted cooperators' advisory council. The commissioner or supervising
14 agency shall require the board of directors of a mutual company or the
15 managing agent to respond to the report within thirty days, detailing
16 the housing company's plan for corrective action.

17 (c) In addition to a physical inspection of all buildings in the
18 development, the grounds, common facilities and central systems for
19 general construction, an inspection may include, but is not limited to:
20 a review of all records the commissioner or supervising agency deems
21 relevant; interviews of shareholders, board members, housing company
22 employees and managing agent employees and any other information which
23 the commissioner or supervising agency deems relevant.

24 (d) The commissioner or supervising agency shall review any local
25 health, safety or building code violations reports or notices retained
26 by the housing company and shall determine whether the buildings and
27 units satisfy the uniform physical condition standards established by
28 the United States department of housing and urban development (24 CFR
29 5.703). The United States department of housing and urban development
30 physical condition standards shall not supersede or preempt local
31 health, safety and building codes.

32 § 2. This act shall take effect immediately.